

parties and all causes of action without prejudice. Defendants have not yet appeared in the action. The Order to Show Cause is **DISCHARGED. No appearance is necessary on today's calendar.**

MOOK, ET AL. VS. JEANTETTE

Case Number: 22CV-0200414

Tentative Ruling on Motion for Summary Judgment: Plaintiffs Tina Mook and Steven Mook move for summary judgment on the Complaint filed against Defendant Jacqueline Jeantette on August 9, 2022. Despite being timely noticed, Defendant did not file an Opposition.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiffs' Complaint contains a single cause of action for conversion.

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another.[Citation.] The basic elements of the tort are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages. [Citation.]” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119, 55 Cal.Rptr.3d 621.) “Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial.” (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, 80 Cal.Rptr.2d 704.)

Regent Alliance Ltd. vs Rabizadeh (2014) 231 Cal. App. 4th 1177, 1181.

In this matter, Plaintiffs' Requests for Admission, Set One were ordered deemed admitted against Defendant on October 21, 2024. Defendant admitted that Plaintiff were guests at her property at the time of the fire that damaged Plaintiffs' property, that Defendant made an insurance claim for the replacement value of Plaintiffs' property, and Defendant kept the insurance proceeds for Plaintiffs' property. Defendant also admitted that Plaintiffs asked her to deliver the \$44,796.86 that was meant to replace their property, but Defendant refused and converted the insurance proceeds for Defendant's own benefit. Finally, Defendant admitted that she has no defense to the claim of Plaintiffs that Defendant converted for her personal benefit \$44,796.86 that was meant to replace Plaintiffs' property.

Plaintiffs have established each element of conversion. The burden shifts to Defendant to show that a triable issue of material fact exists. Defendant did not file an Opposition and has not raised a triable issue of material fact.

The Motion for Summary Judgment is **GRANTED**. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling. The trial date of April 15, 2025 is vacated. The matter will be on calendar for review regarding status of judgment on **Monday, April 28, 2025 at 9:00 a.m. in Department 63**. If a judgment is on file prior to the continued hearing date, the continued hearing date will be vacated.

ROBBINS VS. ADVANCED CRISIS SOLUTIONS, INC.

Case Number: 24CV-0204925

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued January 29, 2025 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Plaintiff filed a stipulation and order requesting additional time to seek resolution of the case, which was granted by the Court on February 27, 2025. Further, Defendant filed a General Denial and response to the Order to Show Cause on February 27, 2025. In light of the filings submitted by both Plaintiff and Defendant, the Order to Show Cause is **DISCHARGED** as to all parties and counsel. The Court notes the future hearing of June 2, 2025 for Trial Setting Conference. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, N.A. VS. TOWE

Case Number: 24CVG-00197

Tentative Ruling on Motion for Summary Judgment: Plaintiff Wells Fargo Bank, N.A. moves for summary judgment on the Complaint filed against Defendant Kevin Towe on February 15, 2024.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiff has presented evidence that Defendant opened a Wells Fargo Credit card, made charges to the card, and stopped paying after June 5, 2023. The Card Agreement and monthly billing statements from January of 2008 through December of 2023 were provided. Per the Court's August 5, 2024 Order, Defendant has been deemed to have admitted the following facts: That Plaintiff issued Defendant a Wells Fargo Credit Card, Defendant was to pay principal the amount charged plus finance charges, only Defendant or those authorized by Defendant used the card, Defendant received monthly statements, no transactions were disputed for any of the monthly billing statements, Defendant owes \$27,647.96, and the last payment was on June 5, 2023.

The Complaint alleges six causes of action:

1. Breach of Written Contract
2. Breach of Implied Contract
3. Common Counts for Money Lent
4. Common Counts for Money Paid
5. Common Counts for an Open Book Account
6. Common Counts for Account Stated.

Breach of Contract. A cause of action for breach of contract requires pleading of a contract, the plaintiff's performance or excuse for failure to perform, the defendant's breach, and damage to plaintiff resulting therefrom. *Miles vs. Deutsche Bank National Trust Company* (2015) 236 Cal. App. 4th 394. A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract except that the promise is not expressed in words but is implied from the promisor's conduct. *San Mateo Union High School District v. County of San Mateo* (2013) 213 Cal. App. 4th 218.

Money Lent and Paid. The elements of a Common Count for money lent are that the defendant is indebted in a certain sum for money loaned by plaintiff and the defendant has not repaid the money lent. *Pleasant vs. Samuels* (1896) 114 Cal. 34. The elements are identical for the Common Count of Money Paid. *Id.*